

**26NNCV00715 26NNCV00715**

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-22

Motion: DEFENDANTS MIKE GILLIGAN AND PUENTE HILLS FORD LLC'S DEMURRER

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Case Number: 26NNCV00715 Hearing Date: September 22, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF  
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST  
DISTRICT

ALEJANDRO RIOS,

Plaintiff(s),

vs.

PUENTE  
HILLS FORD LLC, et al.,

Defendant(s).

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CASE NO.: 26NNCV00715

[TENTATIVE]

ORDER RE: DEFENDANTS MIKE GILLIGAN AND PUENTE HILLS FORD LLC'S DEMURRER

Dept.

3

8:30

a.m.

September

22, 2026

## I. INTRODUCTION

On January

30, 2026, plaintiff Alejandro Rios ("Plaintiff") filed this action asserting causes of action for fraud, fraudulent inducement, negligent misrepresentation, violations of the Consumer Legal Remedies Act, Unfair Competition Law, and False Advertising Law, negligence per se, breach of the implied warranty of merchantability, rescission/restitution, and declaratory relief. Plaintiff alleges defendants Puente Hills Ford, LLC ("Dealer") and its General Manager, Mike Gilligan (collectively, "Defendants"), misrepresented or failed to inform Plaintiff about a "high-risk safety recall that materially affected [his] decision to purchase a vehicle." (Compl., ¶ 1.) The vehicle, a 2022 Ford Escape ("Vehicle") was purchased on September 4, 2023.

On

May 13, 2026, Defendants filed this demurrer to the Complaint arguing that Plaintiff's claims are barred by a release executed on April 26, 2024.

Plaintiff

filed an opposition brief on June 22, 2026.

Defendants

filed a reply brief on September 16, 2026.

## II. LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) “We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]” (*Mitchell v. California Department of Public Health* (2016) 1 Cal.App.5th 1000, 1007; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 [“the facts alleged in the pleading are deemed to be true, however improbable they may be”].) A

## III. DISCUSSION

A release agreement is governed by general principles of contract law. (*Camacho v. Target Corp.*) (2018) 24 Cal.App. 5th 291, 306.) Extrinsic evidence is not admissible to provide a meaning to which an instrument is not reasonably susceptible, and the language of the contract governs its interpretation when it is clear and explicit and does not involve an absurdity. (*Shine v. Williams-Sonoma, Inc.* (2018) 23 Cal.App.5th 1070, 1082.)

Defendants argue that Plaintiff's claims are all precluded by a written Release and Settlement Agreement (“RSA”) that was entered into in response to a prior lawsuit involving the Vehicle. The RSA included a waiver of rights under Civil Code section 1542 and the recitals detailed Plaintiff's purchase of the Vehicle on September 4, 2023, Plaintiff's

claims regarding representations made during the sale, and allegations of predatory lending practices and sales contract terms. (RJN, Ex. B.) Defendants argue that Plaintiff's claims relate to the same Vehicle and sales transaction which were the subject of the RSA.

Plaintiff

argues that the RSA must be "interpreted in context" and that the recitals only addressed a dispute between the parties regarding oil-services, not a claim regarding the nondisclosure of recalls. (Opp., p. 6.) Plaintiff claims that the scope of the RSA cannot be determined on demurrer, even if the RSA includes a section 1542 waiver. However, the terms of the RSA are clear and apply to Plaintiff's claims, known and unknown, relating to his purchase of the Vehicle and any predatory lending and sales practices. The scope of the RSA is therefore not limited to the representations regarding the promised oil changes, but also includes claims arising from the purchase transaction that could have been raised but which were unknown by Plaintiff at the time the RSA was executed.

#### IV. CONCLUSION

Based on the foregoing, the demurrer to Plaintiff's Complaint is SUSTAINED. Since no amendment to the Complaint can alter the unambiguous language of the Release, Plaintiff fails to show that amendment is possible and no leave to amend is granted. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349- 350 [leave to amend may properly be denied where the plaintiff fails to demonstrate how the complaint can be amended to cure the identified defect].)

Moving party to give notice.

Dated

this 22nd

day of September

2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at [ALHDEPT3@lacourt.org](mailto:ALHDEPT3@lacourt.org) indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.